

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 25-02

NIELSEN & BAINBRIDGE, LLC

v.

EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC#011982) consisting of
EVERGREEN MARINE CORP. (TAIWAN) LTD., EVERGREEN MARINE (UK)
LIMITED, ITALIA MARITTIMA SpA, EVERGREEN MARINE (HONG KONG) LTD.,
AND EVERGREEN MARINE (SINGAPORE) PTE. LTD. AND YANG MING
MARINE TRANSPORT CORPORATION

JOINT STATUS REPORT

Pursuant to 46 C.F.R. § 502.141(h), Complainant Nielsen & Bainbridge, LLC (“NBG”) and Respondents Evergreen Line Joint Service Agreement, Evergreen Marine Corp. (Taiwan) Ltd., Evergreen Marine (UK) Ltd., Italia Marittima S.p.A., Evergreen Marine (Hong Kong) Ltd., and Evergreen Marine (Singapore) Pte. Ltd. (collectively, “Evergreen”), and Yang Ming Marine Transport Corporation (“Yang Ming” and, with Evergreen, the “Respondents”) (NBG, together with Respondents, the “Parties”), by their respective undersigned counsel, have conferred and submit this joint status report and proposed discovery schedule:

Complainant served its initial disclosures as required by 46 C.F.R. § 502.141(b) as of February 10, 2025. Since the issues are now clarified and narrowed following the severance of former parties Orient Overseas Container Line Limited and OOCL (Europe) Limited (collectively, “OOCL”), and Ocean Network Express Pte. Ltd. (“ONE”) from the instant proceeding, Respondents will serve their respective initial disclosures within the next 10 days. The Parties do not currently anticipate needing additional depositions or interrogatories in this

case to the amounts contemplated by 46 C.F.R. §§ 502.143 (i.e., no more than 20 depositions per party) and 502.145 (i.e., no more than 50 written interrogatories), respectively.

Pursuant to 46 C.F.R. § 502.64(a), the Parties also held a preliminary conference with the Commission's Office of Consumer Affairs and Dispute Resolution Services ("CADRS") via a videoconference on February 14, 2025.

Consistent with Paragraph 20 of the Presiding Officer's January 17, 2025 Initial Order in this case, the Parties intend to meet and confer and, as of this filing, have already exchanged a draft protective order concerning a stipulation and proposed order regarding treatment of confidential documents and information exchanged and used in this case. The parties have also exchanged a draft protocol on electronically-stored information, determining appropriate custodians, data sources, and possible search terms to guide discovery in this case.

The Parties propose the below schedule, which provides for a discovery schedule in excess of 150 days due to the complexities involved and the volume of discovery in this matter. The Parties are mindful of the 150-day time period set by 46 C.F.R. § 502.141(g); however, the Parties anticipate that documentary discovery will be extensive, requiring additional time.

Complainant's database of potentially responsive documents contains approximately 768.1 gigabytes of data. It is Complainant's experience that much of this data also exists as compressed electronic files which, once opened and expanded, yield a significantly higher data volume. This volume consists of approximately 3.4 million documents exclusively as it relates to emails and electronic files collected from specific custodians, with significant additional documents and data collected from Complainant's shared document files and other sources. After this initial data base has been electronically searched and narrowed, potentially responsive documents based on the Parties' written discovery requests must be manually reviewed for responsiveness, confidentiality, and privilege before they are prepared for production, a task

which will take a significant amount of time. The volume of data which must be searched could grow, depending on the list of custodians agreed upon by the Parties.

As to the Evergreen Respondents, based upon initial assessments of potentially responsive data from likely custodians, it anticipates a return of approximately 1,500 gigabytes of data, which must be electronically searched for responsive documents. And, as to Respondent Yang Ming, based upon initial assessments of potentially responsive data from likely custodians, it anticipates a return of approximately 1,200 gigabytes of data, which must be electronically searched for responsive documents. As is the case with Complainant, the individual compressed files containing data typically produce great multiples of documents, which are expected to exceed 4 million from the Respondents jointly. Like Complainant's data, the same required processes described above of searching and conducting manual review must take place. Additionally, each Respondent has many offices and locations in several countries, all of which are required to be involved for data collection purposes. In total for Respondents, it is estimated that about six separate offices will be involved in at least three countries. In some offices, the collection of data will involve several people whose phones and computers will be the subject of data collection.

In addition to responsive documents from the Parties, discovery in this case will also consist of responsive documents received by third-party logistics and drayage entities. On September 24, 2025, NBG served subpoenas on four third-party entities and has since received productions from three of those entities with a significant volume of documents. NBG is working to review those productions and shared them with Respondents on October 31, 2025 for their review as well. NBG intends to submit additional subpoenas to the Presiding Officer for approval for service which will in turn produce more responsive documents for the Parties to manually review. Respondents also anticipate their own potential need to subpoena third-parties for information.

In the Presiding Officer's Order Severing Cases and Initiating Discovery served on December 31, 2025, the Parties, including OOCL and ONE, were instructed that "coordination is preferred" with respect to depositions that impact all three cases brought by Complainant. While OOCL and ONE have been severed from the instant proceeding, it is anticipated that for purposes of economy, many of the depositions of Complainant's witnesses, and of those that Complainant subpoenas, will require coordination with OOCL and ONE to avoid duplicative testimony on common issues. Similarly, the Respondents in this action will likely seek to attend some of ONE and OOCL witnesses' depositions since the allegations of collusion among all the formerly named parties and present Respondents in this action create the need for all parties, former and present, to understand what those witnesses may testify to in that respect. An agreement to allow examination of ONE and OOCL witnesses by Respondents may need to be reached to avoid duplicative examinations of the ONE and OOCL witnesses as well. This will require significant coordination among several parties across the now multiple actions brought by Complainant and, therefore, further complicates discovery.

The Commission's regulations requiring that discovery be completed within 150 days of the service of a respondent's answer is not realistic for a case of this magnitude in which documentary discovery involves millions of documents, depositions of as many as twenty witnesses per party, and damages alleged in excess of \$4,951,000.

The Parties acknowledge that prompt resolution of claims and disputes arising under the statutes administered by the Commission is a laudable goal, one which the deadlines for issuance of initial and final decisions are intended to achieve, and that scheduling orders are an important part of this process. However, the Parties wish to emphasize that it is not unusual for the deadlines for completion of discovery and/or for the issuance of initial and final decisions to be extended

by administrative law judges and the Commission.¹

There are also policy considerations which favor allowing sufficient time for a full development of the evidentiary record before an agency. *Hudson Shipping (Hong Kong) Ltd. d/b/a Hudson Express Lines – Possible Violations of Section 10(a)(1) of the Shipping Act of 1984*, 29 S.R.R. 1376, 1377 (ALJ 2002) (policy and responsibility of Commission and, by delegation of authority, presiding judge, to inquire into and consider all relevant facts; of even greater importance than the concept of fairness between the Parties, as they maneuver to develop a record which fits their positions, is the need to ensure that justice is served and all relevant facts are considered by the Commission). The Parties believe that good cause has been demonstrated to modify the 150-day deadline provided for under 46 C.F.R. §502.141(g) and accordingly propose the following schedule:

EVENT	PROPOSED DEADLINE
Parties to serve initial requests for production (“RFPs”) of documents and electronically stored information (“ESI”) and interrogatories	February 9, 2026
Parties to serve objections and initial responses to initial RFPs	March 2, 2026
Parties to serve objections and initial responses to initial interrogatories	March 2, 2026
Submission of any unresolved disputes concerning initial RFPs and interrogatories and objections and responses thereto (after counsel confer directly)	April 6, 2026
Substantial completion of productions of documents and ESI in response to initial RFPs	May 26, 2026

¹ See Scheduling Order, *20230930-DK-BUTTERFLY-1, Inc. v. CMA CGM S.A.*, FMC Dkt. No. 25-25, Dkt. 14 (Nov.14, 2025); Scheduling Order, *20230930-DK-BUTTERFLY-1, Inc. f/k/a Bed Bath & Beyond Inc. v. Evergreen Line Joint Service Agreement (fmc#011982) Consisting of Evergreen Marine Corp. (Taiwan) Ltd., Evergreen Marine (UK) Limited, Italia Marittima Spa., Evergreen Marine (Hong Kong) Ltd., and Evergreen Marine (Singapore) Pte. Ltd.*, FMC Dkt. No. 24-12, Dkt. 23 (Aug. 16, 2024); Scheduling Order, *Access One Transport, Inc. v. CMA CGM S.A.*, FMC Dkt. No. 24-18, Dkt. 11 (June 7, 2024).

Parties to File Joint Status Report	June 22, 2026
Complete depositions of fact witnesses	August 10, 2026
Last day to serve interrogatories, requests for admission, and RFPs	August 10, 2026
Disclosure of initial expert reports, if any	September 14, 2026
Disclosure of rebuttal expert reports, if any	October 19, 2026
Complete expert depositions	November 16, 2026
Close of discovery	November 16, 2026
Complainant's initial brief, proposed findings of fact, and appendix	January 4, 2027
Respondents' opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix	February 15, 2027
Complainant's reply and responses to proposed findings of fact	March 8, 2027

Dated: January 13, 2026

Respectfully submitted,

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